

The Port Rules for the Port Of Visakhapatnam

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No. 222-P.&L.-(19)/31 (I), dated the 23rd September, 1933. - In exercise of the powers conferred by sub-sections (1) and (1-A) of section 6 of the Indian Ports Act, 1908 (15 of 1908), read with section 2 of the Visagapatnam Port Act, 1931 (10 of 1931), and in suppression of the rules at present in force at the Port of Vizagapatnam, the Governor-General in Council is pleased to make, with effect from the 6th October, 1933, the following rules for the Port of Vizagapatnam the same having been previously published, as required by sub-section (2) of section 6 of the first named Act, namely:

(i)

Definition of Harbour

1.

For the purpose of these Rules the term "Harbour" shall mean and include every part of the Port of Visakhapatnam as defined by the Governor-General in Council.

Port Conservator includes Deputy Port Conservator and any Harbour Master or Pilot duly authorized to act on behalf of the Port Conservator.

Traffic Manager includes the assistants to the Traffic Manager duly authorized to act on his behalf.

(ii)

Entering or leaving port

2.

All sea-going vessels on entering or leaving the port between sunrise and sunset shall fly their national flag, and when entering the port, each vessel shall show her number. Vessels anchoring in the roadstead must leave sufficient sea-room for vessels to enter or leave the harbour.

Sailing' vessels of 100 tons and upwards shall not enter or leave the harbour unless towed by one or more of the port tugs.

2A.

(1)

Subject to the provisions of the Indian Ports Act, 1908 and the instructions below, Pilotage is compulsory except for those vessels specifically exempted in writing by the Conservator or some officer empowered by him to give such authority.

(2)

The Pilot shall board in-coming ships and disembark from outgoing ships about 4 cables length East of the Outer channel Light Buoys in a position 17°--41'- 17" N. 83°-18'-30"E. and assist in piloting a vessel to and from her assigned berth and also in berthing and unberthing the vessels.

(3)

The Master shall supply to the Pilot all information with regard to quarantine, dangerous goods on board, ships' draft and matters relating to the ships' behaviour, etc., and shall, on completion of pilotage and berthing or unberthing, complete and sign the certificate on specified forms presented by the Pilot.

(4)

In the event of an outward bound vessel over-carrying a pilot outside the limits of the Port, the master shall be bound to land the Pilot at the nearest Port and shall be liable to pay all expenses incurred on this account.

(5)

Pilots shall be supplied with breakfast between 7 and 9 a.m., lunch between noon and 2 p.m. and dinner between 6 and 8 p.m., Indian Standard Time, failing which the Master shall pay compensation for food, namely Rs. 3 for any of the meals missed by a Pilot.

(6)

The master of a vessel shall, in accordance with the provision of the Indian Ports Act, 1908, display such signals as required by the Pilot to be used or as may be directed by the Pilot.

(7)

The master of the vessel shall be responsible to take on board such equipment as the Pilot may carry with him in the interest of pilotage of ships namely, R/T equipment, Binoculars, Pilot's kit, etc.

(8)

Every ship entering or leaving the harbour shall be provided with the following.

(a)

An efficient Pilot ladder to enable the Pilot to embark and disembark with safety, which shall be of sufficient length to reach the water, when the ship is in an unloaded condition and has no list, from the deck on which it is intended that the Pilot shall embark and disembark.

(b)

A manrope of not less than 21/2 inches circumference on each side of the ladder, the inboard and of the manrope being firmly secured to the ship.

(c)

Means to enable the ladder to be used on each side of the ship and to enable the Pilot to pass safely from the head of

the ladder to the deck of the ship.

(9)

Vessel shall not anchor within the Outer channel Fairway Buoys or within 4 cables length across the Entrance marked by the Outer channel Fairway Buoys or in any other prohibited Anchorage as marked on Admiralty Chart 239 Approaches to Vishakhapatnam Port, nor shall a master attempt to enter the channel to pick up a Pilot.

(10)

It will be incumbent upon the master of a vessel to avail of the service of the Port tugs, while navigating within the Port limits.

(11)

In the event of a vessel parting her moorings whether secured to a jetty, quay or buoys, it will be necessary to have an anchor ready for letting go, without delay, and to be prepared to meet such an emergency with readiness and despatch as the result of the parting of her moorings which may be serious.

(iii)

Notice regarding arrival of vessels

3.

Agents of all vessels expected to arrive in the port shall, at the earliest possible moment, send to the Traffic Manager the following information :

(1)

Name of vessel.

(2)

Agent's name.

(3)

Date expected.

(4)

Net registered tonnage.

(5)

Tonnage and description of cargo to be landed.

(6)

Tonnage and description of cargo to be shipped.

(7)

Last Port of call.

(8)

Colours under which sailing.

(9)

"Estimated draft on arrival at Visakhapatnam Port." (Port Conservator's No. A 50 dated 28-3-50.).

(iv)

Berthing of vessels

4.

All vessels within the port shall take up such berths as may be assigned them by the Port Conservator, and shall change their berths, or move when required by him.

(v)

Rules to be followed by the Masters of vessels while in Harbour

5.

Striking yards and masts.

- All vessels within port shall strike their yards and topmasts on being required to do so by the Port Conservator, whether by signal or otherwise.

6.

Vessels taking in or discharging cargo, etc.

(a)

All vessels taking in or discharging ballast or any particular kind of cargo such as ammunition or other explosive, kerosene oil, bones, coral or other offensive articles and timber within the limits of the port shall do so only at such

station as may be set apart from time to time by the Port Conservator.

(b)

No ballast, earth, ashes, stones, rubbish, waste material, filth, oil, ballast water containing oil and bilge water shall be thrown, discharged, placed, put, emptied or allowed to leak or flow or to fall from any vessel into any portion of the harbour without the special permission of the Port Conservator.

7.

Bunkering of vessels with liquid fuel.

- Bunkering of vessels with petroleum, liquid fuel may be permitted at the quays by means of the service pipe lines, provided that the following conditions shall be fulfilled :

(a)

During all such time as any vessel is receiving fuel into her bunkers, the Master or First Mate of such vessel shall be present on board and it shall be incumbent upon him to see that these rules are complied with and that all reasonable precautions for safety are observed.

(b)

A ship's officer shall be on watch and an attendant shall be stationed alongside the flexible connecting pipe while bunkering is in progress.

(c)

Suppliers of liquid fuel shall be responsible for seeing that all flexible pipes used for bunkering steamers are tested to a pressure of 100 lbs. per square inch before operations commence and that all joints are oil-tight; that after the completion of each bunkering operation the port section of the pipe line is cleared and that when flexible pipes are dismantled any unavoidable spillage on the quay is properly cleaned up with sand. Ship's officers in charge of vessels receiving bunkers shall be responsible for seeing that all valves in ship's tanks or connections are properly regulated to receive liquid fuel and due warning shall always be given to suppliers by such officers before any valves are closed to prevent the possibility of a sudden increase in pressure which may cause a burst in the flexible pipe or elsewhere and a consequent leakage of oil. Masters and owners of vessels receiving liquid fuel and suppliers of liquid fuel for bunkering shall be personally and severally responsible for seeing that bunkering operations are conducted with cleanliness and in an orderly manner.

(d)

Suppliers of liquid fuel for bunkering shall be liable for any damage whatsoever caused to cargo or property belonging to or in charge of the Traffic Manager by any leakage of fuel oil due to or arising from negligence or any defect in or failure of apparatus or appliances belonging to the suppliers.

The master and owners or the agents of the vessel receiving such fuel shall also be liable for any such damage if caused by negligence or defect or failure of apparatus or appliances belonging to the steamer.

(e)

No cargo other than steel plates, iron rails and similar goods unaffected by oil, shall be allowed on the wharf within 50 feet of the oil stand pipes and shed doors immediately behind them shall be kept closed while bunkering is in progress.

(f)

Before bunkering commences, the ship's attendant shall see that the telephone connection to the Oil Company's Depot is in working order.

(g)

An attendant shall be on duty at the pump throughout the time of bunkering.

(h)

At least two hours' notice in writing shall be given to the Port Conservator before bunkering is commenced.

(i)

No bunkering shall be commenced unless a sand cart containing 15 cubic feet of sand is on the spot at the supply pipe.

8.

Keeping free passages.

- The entrance to the harbour, the spaces between the different mooring within the harbour, the turning basins and the spaces in the vicinity of all piers, quays and harbour walls, shall be kept free to such extent as may be required by the Port Conservator or by such other officers as may be appointed by the said Conservator to act on his behalf.

9.

Anchoring and mooring.

(a)

All vessels within the Port shall be anchored or moored in such manner as may be directed by the Port Conservator.

(b)

The anchors of all steamers and square rigged vessels must be buoyed, and care taken that the buoys "watch".

10.

Moving and Warping.

(a)

All vessels within the port shall be moved or warped from place to place as required and by such means or appliances as may be ordered by the Port Conservator.

(b)

No vessel shall cast off a warp that has been made fast to her to assist a vessel moving, without being required to do so by the Pilot or Harbour Master-in-charge of the vessel moving.

(vi)

Regulations relating to use of Government piers and jetties, etc.

11.

The hours during which work may be carried on in each of the several sections into which for traffic working purposes the port premises are divided, will be notified by the Traffic Manager from time to time by means of notices posted in the sections concerned, and no work shall be done, within the Port premises outside the regular working hours so notified except with the permission in writing of the Traffic Manager.

12.

Admission to the enclosed Port Premises shall ordinarily be regulated by means of tickets, licenses or badges which shall on application be issued by the Traffic Manager to such of the Public as have business to transact within the premises in somewise connected with the purposes, services or works of the port.

12.

-A.

No person shall, except under the authority of a written permit granted by the Traffic Manager

(a)

have to carry with him a camera for taking photograph or any material for making a sketch, plan, model or other devices;

(b)

take any photographs or make any sketch, plan or model of any movable or immovable object or building or installation within any dock area.

Explanation. - For purposes of this rule, the expression "dock area" shall consist of the followings.

(i)

The Dry Dock area between the eastern and western boundary walls,

(ii)

The quay wall area enclosed by Customs boundary wall,

(iii)

The coal and oil wharves and jetties enclosed by barbed wire fencing, and

(iv)

The eastern foreshore of the Turning Basin from the Southern Lighter Canal to the Narrow Gauge Railway gate.

13.

Certain sites shall, from time to time, be set apart as occasion may require, by order of the Traffic Manager at his discretion, to enable boatmen or coolies to obtain their food and all persons bringing such food shall be restricted to these sites and the pathways leading thereto, and therefrom, which shall be indicated by notice-boards.

14.

No goods shall be landed or shipped except at the places appointed by the Traffic Manager, for each class of cargo.

15.

All floating timber discharged from vessels inside the port shall be properly rafted and towed or floated into the timber pond.

16.

(a)

No package shall be opened upon the port premises by the importer or owner for appportionment, examination or survey, without the permission of the Traffic Manager. All workmen employed for opening packages on the port premises for appraisement, examination or survey, shall be licensed by the Traffic Manager.

For the convenience of members of the public who have not secured the services of a licensed Cooper the Port performs co-operage at the following rates :

Per

Package

Rs.

nP.

(1)

for opening and closing small packages not exceeding one cubic foot in dimensions.

00.12

(2)

for opening and closing packages exceeding one cubic foot but not exceeding 6 cubic feet in dimensions

00.25

(3)

for opening and closing packages exceeding 6 cubic feet but not exceeding 16 cubic feet in dimensions

00.37

(4)

for opening and closing packages exceeding 16 cubic feet but not exceeding 64 cubic feet in dimensions

00.75

(5)

for opening and closing packages exceeding 64 cubic feet but not exceeding 154 cubic feet in dimensions

01.00

(6)

for opening and closing packages exceeding 154 cubic feet in dimensions

02.00

(b)

Goods opened by order of the Customs Departments for examination or appraisement or for survey at the request of the steamer agent or of the owners of the goods, remain at the risk of the owner until, with the permission of the Custom Department if opened for appraisement or for customs examination or at the written request of the owner if opened for survey, they shall have been returned definitely to the Traffic Manager, by the owner for custody and a receipt for them shall have been granted.

(c)

Goods opened for appraisement, examination or survey, which the owner does not intend to return to the Traffic Manager as laid down in clause (b) above must be removed from the port premises immediately after the appraisement, examination or survey shall have been completed.

17.

The Traffic Manager will not accept responsibility in respect of any package containing a work of art or an article of vertu of which the value including that of package exceeds Rs. 500, or containing specie, bullion, gold or silver articles, jewellery, precious stones or coral, unless six hours at least before the package is landed or shipped, written notice is given to the Traffic Manager, by the owner or consignee, and the package is specially delivered to the Traffic Manager, and a receipt therefor obtained. Should any package containing any of the articles above referred to be brought to any

wharf, quay in the possession or occupation of the Traffic Manager, without written notice thereof as hereinbefore provided being given to the Traffic Manager, the packages, if for export, shall be shipped or, if imported, shall be removed to the Custom house or to the port sheds at the sole risk of the owner and shall remain at his risk until cleared.

18.

No person shall load or ship or attempt to load or ship or tender for loading or shipment on or into any vessel within the port any package or object of which the gross weight is one metric ton or more unless and until the gross weight of such package or object has been plainly and durably marked upon it. If the exact gross weight of any exceptional package or object is not available, such package or object must be marked "Weight not more than" and the gross weight so marked must not be less than the actual gross weight.

Licensing and regulation of boats. - See now Railway Boards Notification No. S.R.O. 1019, dated 1st December, 1950, infra

Rules 19 to 59 [omitted.]

59.

-A. Repairs to vessels while in wet docks at Visakhapatnam Port. - If any repairs are undertaken when a vessel is alongside a berth and in the course of such repairs it becomes necessary to open any of the overside pipes, such pipes shall be rendered safe by being blanked off. If an overside pipe cannot be blanked off and rendered safe, then it shall not be opened up in the Port. The master or the Officer-in-Charge of the vessel and the owners of the vessel shall be held responsible for any accident that may arise from neglect to take these precautions and for all liabilities that may arise as a result of the accident.

(vii)

Use of fires and lights

60.

(a) No vessel shall be fumigated except at a place appointed by the Port Conservator for that purpose.

(b)

Pitch or dammer shall not be heated on board vessels within the port but in a boat alongside or astern: nor shall spirits be drawn off on board such vessels by candles or other unprotected artificial lights.

(c)

Vessels when loading or unloading cotton and/or jute shall have the hatch coamings and steel works in the holds protected to prevent sparks from the impact of chains, etc. and no smoking, naked lights or matches shall be allowed in or near the holds where cotton, and/or jute is/are stowed.

(d)

When gunpowder, ammunition or other explosive in excess of 100 lb. weight are being shipped on board or being discharged from any vessel within the limits of the port, neither fires, lights nor smoking are under any circumstances to be permitted on board.

61.

(a) No person shall without permission previously obtained from the Traffic Manager kindle or make use of a fire or a naked light on the quays or wharves, or in any godown or enclosure or open space used for the time being for the storage of goods within the port premises, and no person shall smoke in or near any such godown or enclosure or open space.

(b)

No person shall smoke or use naked lights of any description on board a barge or lighter, carrying cargo, and no fires shall be permitted on board such craft except in stoves or fireplaces a regularly constructed for the purpose.

(viii)

Use of signals and signal lights

62.

The master of any vessel arriving within the port with ammunition, explosives other than fireworks, etc. forming part of the ships equipment of distress signals or over 100 lb. in weight of gunpowder on board as cargo, shall display a red flag B of the international code at the board as cargo, shall display a red flag B of the international code at the fore during day-light, and between sunset and sunrise shall exhibit, when at anchor, a red light at the force for such time as the ammunition, explosives or gunpowder may be on board within port limits.

(ix)

Number of crew

63.

All vessels within the port shall have on board a sufficient number of crew to perform any duties which may become necessary for the safety of the vessel in regard to veering or heaving in cable, bracing up the yards, striking masts and yards, etc, in case of emergency arising.

(x)

Cleaning or painting vessels and cleaning bilges

64.

No person shall be employed in cleaning or painting a vessel or in working in the bilges, boilers or double bottom of a vessel in the port either before or after the hours which may be fixed from time to time by the Port Conservator for such purposes.

(xi)

Employment of children

65.

Children under 15 years of age shall not be employed within the limits of the Port of Vishakhapatnam upon the handling of goods.

(xii)

Licensing of stevedores at the Port of Vishakhapatnam

65.

-A. The Port Conservator shall, from year to year, issue licences to certain approved firms and individuals, granting them permission to perform the work of stevedoring vessels in the Port and no stevedore shall be allowed to work on board any vessel in the Port unless he is holding such licence.

The Port Conservator may, after giving the licensee an opportunity of being heard and for reasons to be recorded in writing, cancel or suspend any such licence.

On receipt of an application from a stevedoring firm for a licence to work in the Vishakhapatnam Port, the licensing authority will inform the Stevedores Association of the receipt of the application and invite objections, if any, to the grant of the licence. If any objections are received, they will be considered on their merits. The decision of the licensing authority will be final and no reasons can be demanded for granting or not granting the licence. Every licensed stevedore shall engage labour only from a pool or registered workers formed by the Port, unless no registered pool worker is available.

65.

-B. No licence to work in the Port shall be issued to any stevedore who shall not undertake to employ, and every licensed stevedore shall have in his permanent employment, such minimum staff as may be specified by the Port Authority from time to time. At least one experienced Tindal shall be in charge of the work of each gang working in each hold who shall supervise the loading or unloading including the slinging or unslinging of cargo at each hatchway at which loading or unloading is being carried on. It shall also be the duty of the Tindal when work is stopped for the day or night to search and satisfy himself that no one is remaining in the hold. Whenever a vessel is working cargo in the between-decks alone, it shall be the duty of a supervisor or foreman to see that the between deck hatchways that are provided with cross beams and fore and aft beams have all such beams fixed in their proper places and that the hatches are properly put on before commencing work. The taking off and putting on the beams and hatches shall not be done except under the supervision of supervisor or foreman who shall also see that persons keep out of danger on deck and do not stand under any hoist. A signalman shall be posted on deck to see that the crane chain is not taken out of the square of the hatchway and that the hook does not catch the coamings.

65.

-C. Cargo shall not be discharged, loaded or shifted in any vessel in the Port except under the directions and superintendence on board such vessel of the Master or owner of the vessel or of a stevedore licensed by the Port Conservator to perform such work in the Port.

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